

Introduction

What This Book Is

Something happened when large language models arrived at human-scale fluency: the concepts we use to describe minds—*understanding*, *meaning*, *intelligence*, *feeling*—stopped working the way they had always worked. Not because the concepts were wrong, but because they had been formed through use in clear cases and never needed to be defined for cases like this one. The result is a situation in which serious thinkers disagree, with considerable confidence, about whether these systems understand anything at all. Both sides reach for the same concepts and arrive at opposite conclusions. That is not a sign that one side is confused. It is a sign that the concepts were never principled enough to settle a case this novel.

This observation—that AI is a *hard case* for our conceptual frameworks, not merely a hard problem for engineers—is the entry point for this book.¹ But it opens quickly onto a second question. The machine was not produced in a vacuum. It emerged from a particular economy, a particular cultural logic, a particular way of organising the relationship between production and consumption. What does that origin reveal about what the machine is, and what it deepens? And a third: the condition the machine exemplifies—the erosion of durable, world-building human activity in favour of cycles of consumption—has been gen-

¹‘Our conceptual frameworks’ marks a genuine limitation of scope. The argument proceeds within the Cartesian and analytic tradition that individuates mental states as inner, substrate-dependent, and belonging to discrete persons. Traditions with differently structured mental vocabularies may not have the same hard case at the same location: where mind is already understood as relational or distributed—as in Ubuntu philosophy, Buddhist Abhidharma, or many indigenous traditions—the question ‘does this system have inner experience?’ presupposes a structure of individuation that was never the starting point. That the hard case is specifically hard for this tradition’s concepts is itself a finding rather than a limitation: what the floating reveals is as much about the architecture of the tradition as about the nature of the systems that exposed it.

erating its own diagnosis and its own resistance for as long as industrial society has existed. What does that history reveal about the situation we are now in?

Three arguments, developed in separate chapters, constitute the diagnostic core. The first concerns concepts. The second concerns economy and culture. The third concerns history. They are related: all three follow from the observation that AI is not simply a new tool but a *hard case*—a situation in which frameworks formed under easier conditions are forced, for the first time, to declare what they actually commit to.²

Two further chapters carry the diagnosis toward a response. The first chapter's analysis ends on an austere conclusion—that in the hard case, applying a concept is not description but *legislation*—and the fourth chapter takes up the practical question this leaves behind: if concepts must be legislated, what does legislating them *well* consist in, who is competent to do it, and has it ever been done well before? It finds its answer in the history of law, and finds also that the institutions now charged with the work are not equal to it—an inadequacy that is itself a symptom of the condition the second and third chapters describe. The fifth chapter asks what remains possible under that constraint. It distinguishes an *adequate* response from a *successful* one and argues that adequate response, though it cannot promise to reverse the condition, is available and worth the name.

Chapter One: The Hard Case

The first argument concerns language and the mind. Large language models are described, routinely, as systems that understand, know, reason, and sometimes even feel. They are also described, equally routinely, as systems that do none of these things—that process text without genuine mental engagement. Both characterisations are advanced with considerable confidence by serious thinkers. What neither characterisation asks is whether the concepts being applied or denied—*understanding*, *feeling*, *intelligence*, *knowledge*—have principled criteria adequate to settle the question in a case this novel.

The argument of the first chapter is that they do not, and that this matters more than either side of the debate acknowledges.

²This book is a companion to Set Lonnert, *The Conditions of Intelligence* (BoD—Books on Demand, 2026), ISBN 978-91-8134-408-0 (Code Crafting no. 2), which proceeds in the opposite direction: from AI systems outward, through technical architecture, consciousness, governance, and political philosophy, to the society they are entering. The present book reverses that direction—beginning from the cultural and historical conditions that produced AI and asking what those conditions reveal about AI's character and consequences. Neither book requires the other; each is intended to stand on its own terms.

Mental concepts were formed through use in paradigm cases and never required definition because genuinely ambiguous cases did not arise. Every candidate for understanding was either a human being engaged in the full texture of a life or a stone, a mechanism, a system so obviously inert that the question did not arise. AI is the first case in which the paradigm cases run out: something is encountered that is neither the human understander nor the stone, that sits in between, exhibiting the signatures of mind without, we believe, its underlying states. And when we reach for the concept of *understanding* to settle the question, we discover that the concept was formed by and for a world with one kind of entity in it. It *floats*—still used, but no longer anchored to anything that can adjudicate the case.

LLMs are, in this sense, a diagnostic instrument rather than a problem to be settled. They do not reveal whether machines understand; they reveal that the concept of understanding was never principled enough to settle a case this novel. The same applies to *feeling*, *meaning*, and *intelligence*: not pseudo-concepts, but ostensive ones—formed by pointing at clear cases, never defined by necessary and sufficient conditions, and now meeting the first situation in which the pointing does not work.

A second thread runs alongside the conceptual one. If LLMs generate coherent, contextually appropriate, grammatically impeccable text through distributional pattern-matching over vast corpora—without, so far as we can tell, the intentional states that Grice took to be constitutive of meaning—then either LLMs do not mean anything, or meaning was never as thoroughly intentionalist as the theory supposed. Both possibilities are uncomfortable. The first requires explaining what exactly it is that LLMs are doing when they produce text that functions, in every practical way, as meaningful discourse. The second requires revising the theory of meaning in ways whose implications are not yet visible.

The chapter draws on Wittgenstein’s distinction between criteria and symptoms, the reflexive instability of introspective warrant, Hubert Dreyfus’s Heideggerian critique of classical AI and its partial vindication by the embodied cognition tradition, and Hegel’s method of immanent critique as a resource for thinking from inside a condition one cannot step outside of. It confronts the strongest available objection—the semantic externalist’s claim that mental terms are anchored by a hidden essence rather than by articulable criteria—and argues that mental concepts lack the deference structure the objection requires.

A final section proposes a structural reorientation rather than a purely negative result. The hidden assumption behind “does this system understand?” is *extensionalism*: the assumption that *understanding* has a determinate extension—a set of members—and that analysis must specify criteria for membership in that set. Ernst Cassirer observed in 1910 that scientific concept formation had moved from substance-concepts, defined by intrinsic properties, to function-concepts,

defined by structural relations. Category theory makes the reorientation precise: by the Yoneda lemma, an object is fully characterised by its morphisms—the structure-preserving maps from it to every other object in its category. Applied to *understanding*, this replaces the membership question with a relational one: which of understanding’s constitutive relations transfer to the machine case, and which do not? The answer is structured and informative. The inferential and behavioural morphisms transfer: novel application, explanation, contextual sensitivity. The intentional and embedded morphisms do not: directedness at the world, grounding in a form of life, stakes in being right. The machine is not a member or a non-member; it is a *partial functor*. Brian Cantwell Smith’s independently derived distinction between *reckoning*—the calculative manipulation of registrations—and *judgment*—genuine commitment to the world as world—arrives at the same fracture line from inside the engineering tradition. That two analyses starting from such different positions converge on the same division is evidence that the line lies in the phenomenon and not in the method.

The structural analysis entails a further turn: if the paradigm cases underdetermine the concept, and if there is no hidden essence for the expert to discover, then deciding which cluster of morphisms shall count as constitutive for a given practical purpose is legislation rather than discovery—an explicit, revisable, publicly accountable commitment about how we shall live with these systems, not a theoretical finding about what they are.

Chapter Two: The Animal Laborans Online

The second chapter takes a different approach to the same question of conditions. It asks not what AI reveals about our concepts but what it reveals about the economic and cultural substrate that produced it—and finds that the most illuminating frame is Hannah Arendt’s distinction, in *The Human Condition*, between *labor*, *work*, and *action*.

One familiar application of Arendt’s framework focuses on the difference between fabrication (*work*) and action: AI systems convert inputs to outputs according to statistical regularities, at scale, without the capacity for genuine initiation—for the natality that Arendt placed at the centre of political life. AI recombines what has been begun; it cannot begin. But this reading applies the distinction at the expense of the third term: *labor*, the activity of the *animal laborans*, and the specifically consumerist phase of modernity that Arendt identified as its triumph.

Arendt’s account of modern consumer society is, in retrospect, more structurally prescient than most readings acknowledge.

For Arendt, the modern era represents the progressive triumph of *labor*—the biological, cyclical activity whose products are immediately consumed—over

the other two kinds of activity. Work (*homo faber*) produces durable artifacts: tools, buildings, institutions, art. These constitute what Arendt calls the *world*—the human-built permanence that outlasts individual lives and gives life something to orient itself against. Labor produces nothing that endures. Its output is consumed in the moment of production, and the cycle begins again: produce, consume, produce. Consumer society is the social form in which this logic has extended its reach beyond food and fuel to everything—in which even durable goods are engineered for obsolescence, even cultural artifacts are produced for immediate consumption, even relationships are experienced as transactions. The world—the durable artifact—is progressively dissolved.

The claim of this chapter is that AI is not a disruption of this trajectory but its completion. AI did not arrive from outside consumer culture and transform it. Consumer culture produced the substrate—economic, technical, and epistemic—on which AI’s particular form was built, and AI perfects the logic that consumer culture had been developing for decades.

AI-generated content is the paradigm consumer good. Frictionless, instant, personalisable, and disposable. No craft, no accumulated authorship, no durable artifact in Arendt’s sense. The dream of consumer delivery—unlimited content on demand, personalised to the moment of request, available anywhere—is realised exactly when a system can generate rather than retrieve. What consumer culture was approximating through the industrialisation of cultural production, AI achieves structurally: the separation of output from any particular maker, moment, or commitment. The output is consumed the moment it is generated; nothing accumulates toward a world. The appearance of authorless generation conceals, at exactly the point of that appearance, an enormous quantity of human labour in its strictest Arendtian form: the piecework annotation, the preference rating, the content-moderation task that leaves no trace, accumulates toward nothing, and vanishes into the aggregate as the consumed meal vanishes into the metabolism—labour that makes the system’s worldlessness possible by being itself maximally worldless.

The frozen web was frozen in consumer culture. Large language models were trained on the textual output of consumer society: social media, product reviews, entertainment, marketing, news optimised for engagement. Quine’s “frozen web of belief”—a figure for the epistemological limitations of language models—is frozen not merely at a moment in time but *in a particular cultural register*—shaped by what consumer platforms selected for. The selection pressure of those platforms was not truth, depth, or durability but engagement: content that sustained the consumption cycle. The biases of language models are not only historical contingencies; they are the sediment of what consumerism rewarded. And the register of the deployed model is not only the sediment of the corpus: post-training by human preference—millions of piecework judgments of *this response rather*

than that one—applies the consumption cycle’s logic explicitly and by design as the optimisation target of the system’s last and most consequential stage of formation.

The attention economy is the structural hinge. Recommendation systems optimised for engagement produce content that maximises engagement regardless of truth or social benefit. This is not an anomaly. It is the application of the consumer market’s logic to cognition: the metric of success is not whether the product is good but whether it sustains consumption. An AI trained by engagement feedback is an AI trained by consumerism’s logic operating at the level of attention. The result is systems whose outputs are optimised for the continuation of the consumption act rather than for the purposes the consumption was nominally meant to serve.

Surveillance capitalism is the animal laborans turned on itself. Shoshana Zuboff’s account of surveillance capitalism is Arendt’s analysis extended to its most recent form. In consumer capitalism, the consumer is the endpoint of production. In surveillance capitalism, the consumer is also the *input*: behavioural data extracted from the act of consumption becomes the raw material for a second round of production sold to third parties. The *animal laborans* cycle feeds on itself. The consumer produces, by consuming, the product that is sold back to shape their future consumption. AI systems trained on this data do not merely inherit its biases; they participate in the cycle—generating outputs that elicit responses that become training data for further outputs.

Worldlessness. The concept Arendt used for the consequence of the *animal laborans*’s triumph was *worldlessness*: the erosion of the durable artifacts that anchor human life in something beyond the metabolic cycle. A world without enduring things—without buildings that outlast their builders, texts that outlast their authors, institutions that outlast their founders—is a world in which nothing accumulates toward permanence. AI-generated content is maximally worldless: fluent, disposable, unrooted from any particular maker or moment. The “death of the author” that literary theory discussed as a theoretical provocation becomes, with AI at scale, a structural economic fact. And with it goes the specific kind of responsibility—to a reader, to a tradition, to the truth of a particular moment—that authorship carries.

The chapter argues that the connection between consumerism and AI is not merely descriptive but structural: AI is what the consumer ideal arrives at when production becomes generative. The anchor is Arendt’s own Prologue, which named automation as the event that would liberate the society of laborers from labor in a culture that had forgotten the activities for which the liberation would be worth having. Two refinements carry the analysis past its obvious objections: digital *persistence* is distinguished from Arendtian *durability* (everything is retained; nothing is kept), and durability itself is shown to be insufficient without

publicity—a private archive is not a world. The diagnosis is not pessimistic, and the chapter earns rather than asserts this: natality is the structural outside of the loop, the one thing no training distribution can contain. The chapter ends not with a solution but with the precise articulation of what is at stake. Ivan Illich’s distinction between *convivial tools*—which enlarge the user’s competence and remain answerable to the person wielding them—and industrial tools—which deliver standardised satisfactions to consumers whose own capacities atrophy in proportion to the tool’s power—gives the question its operational form: whether AI is being used to extend the competence of someone engaged in work they answer for, or as the terminal industrial tool, the device that delivers the satisfaction of having made without the making. At this point the chapter’s argument meets the first chapter’s directly: the question of how we shall live with AI systems requires *action* in Arendt’s sense—plural, public, initiated rather than consumed—and what this chapter has shown is that the same systems posing the question are embedded in, and deepen, the cultural form that most systematically erodes the capacity for action.

Chapter Three: The World They Were Defending

The third chapter asks whether this book’s diagnosis of worldlessness is new. It is not. The condition that Arendt named in 1958 had been generating its characteristic resistance since at least the 1810s, when the factory system began to reorganise production in ways that made the loss visible. The chapter traces that resistance across six or seven waves: the Luddites, defending the craft world of the skilled weaver and cropper against machinery that dissolved it into unskilled machine-tending; the utopian socialists, constructing alternative communities designed from first principles to sustain the whole person rather than extract surplus; the Romantic philosophers—Rousseau, Schiller, early Marx, Ruskin—giving philosophical form to the intuition that something world-constituting was being destroyed; the Arts and Crafts movement, making the argument in objects; the Scandinavian cooperative and folk traditions, which combined economic organisation with the deliberate cultivation of civic culture in ways that proved more durable than their British and American counterparts; the global movements—Gandhi’s khadi campaign and Yanagi Sōetsu’s mingei movement—demonstrating that the same structural condition generated the same diagnosis in colonial and non-Western contexts; the individual withdrawals of Thoreau, Tolstoy, and the Wandervogel; and the commune movements of the 1960s, the most recent large-scale recurrence of the same impulse.

The chapter introduces a distinction the survey makes necessary: not all of these responses are alike at the level of their foundations. The secular and humanist movements—Luddites, utopians, Arts and Crafts practitioners, commune

members—derive their authority from within history: from human reason, aesthetic judgment, or social conscience. Their critique is addressed to other people and is in principle answerable by argument. Religious traditionalism of the kind that maintains pre-modern practices against the pressure of modernity derives its authority from outside history entirely—from divine revelation, scripture, or ecclesiastical tradition. The rejection of modernity is not a conclusion arrived at by criticism; it is an obligation derived from a pre-given truth.

This distinction carries a practical consequence worth stating directly. The communities that have most successfully maintained world-building practices against the consumption cycle—the Old Order Amish being the sharpest example—have done so by grounding their collective life in an authority that individual judgment cannot revise. The secular movements were absorbed; these communities were not. But the lesson requires careful reading.

What the consumption cycle cannot metabolise is not transcendent authority as such, but pre-individual collective obligation—the kind of binding that precedes and overrides individual preference. Religious communities possess this because their authority derives from outside history: the question of whether to comply is not open, and so the cycle cannot find purchase on it. The secular movements have not generated anything with equivalent binding force. Their critique dissolves into preference; preference is exactly what the cycle runs on.

This does not make religious traditionalism the model. What it preserves is the form of world-building practices while foreclosing the judgment that gives those practices their full meaning. A community organised around authority that cannot be questioned cannot exercise natality in Arendt's sense—cannot begin genuinely new things—because every beginning is evaluated against a received truth that precedes it. It has answered in advance the question that this book argues must be held open.

What the pattern reveals is that resistance is possible—the consumption cycle is not irresistible—and that the specific failure of secular resistance has been its inability to generate collective commitment that binds without surrendering judgment. That is not a counsel of despair. It is the precise location of the task.

The chapter closes with the book's central danger formulation. The movements surveyed were defending against the straightforward destruction of the *homo faber's* world—and that world has, by the time AI arrives, been largely demolished. What AI threatens is something more insidious: not the further destruction of what remains but the *simulation of its reconstruction*. AI occupies, or presents itself as occupying, the position of the maker whose making builds a world—at the moment when that position has been most thoroughly prepared for occupation by two centuries of the *animal laborans'* triumph. The danger is that the activity of making will be reconstituted around outputs that present themselves as made in the relevant sense while bearing none of the features that made

making world-constituting: not the dissolution of world but its replacement by an infinitely scalable image of world, one that the consumption cycle can offer as the *homo faber*'s satisfaction without the *homo faber*'s work, the product without the responsibility, the appearance of durability without anything that endures.

Chapter Four: Legislating the Concept

The fourth chapter begins where the first ended. Chapter One closed on a conclusion exact in its logic and austere in its consequences: where the paradigm cases genuinely underdetermine a concept—where the features that always travelled together in the cases that taught us the word have come apart—extending or withholding it is no longer description but *legislation*, an explicit, revisable, publicly accountable commitment about which cluster of morphisms shall count as constitutive for a given practical purpose. That conclusion was reached by analysis. The question it leaves behind is not, in the first instance, a question for analysis at all. It is practical, even administrative: if concepts must be legislated, what does legislating them *well* consist in, who is competent to do it, by what procedure, and has it ever been done well before?

The argument of the chapter is that the practice is old, and that we already possess a long and instructive record of it under another name. Legal history is, to a remarkable degree, a history of precisely this activity—the extension of inherited concepts to cases they were not formed to govern, conducted with widely varying self-awareness and to widely varying effect. The record furnishes both models worth imitating and failures worth avoiding, and it has the further advantage of being a record of *decisions*: moments at which a community, a jurist, or an assembly committed itself to one reading rather than another and could have committed itself otherwise.

Two constraints specify what makes such a choice a good one without prejudging its content. The first is *coherence with purpose*: the morphisms selected as constitutive must answer to the specific practical interest the legislation serves—grounding liability for AI-generated medical harm in the inferential-behavioural cluster is sound if the interest is to assign responsibility for outputs that functionally caused damage, and unsound the moment that same choice is transposed to the question of moral status, where the interest is the kind of inner life the inferential-behavioural cluster simply does not bear on. The second is *public accountability*: the choice must be made in the open, with reasons, through a process visible and contestable to those it binds. And here the case for openness is not merely a matter of legitimacy. It is epistemic, in a sense Arendt's account of action specifies more precisely than the usual arguments from democratic theory: the shared interest a concept is meant to serve becomes visible

only through the encounter of those whose practices it governs, so that a choice made over their heads tends not only to be less legitimate but to be less *accurate*. One objection is conceded rather than disguised—that a purpose is no more given than the concept it settles, so the underdetermination reappears one level up—and met with the same remedy the chapter proposes for concepts: legislate the purpose *as* a purpose. The standard is recursive, not defeated.

The historical record then supplies both the method and its conditions. Rome supplies the method in its most self-aware form. The *persona ficta*—the corporate body treated *as if* it were a person for certain purposes and not others, able to own land and sue for its recovery but unable to marry or be held criminally to account—was an extension named *as* a fiction rather than passed off as discovery, and the Roman jurists' casuistry, reasoning from the *ratio* of a rule to the case before them, is morphism analysis conducted under another name. The Nordic tradition supplies the conditions. The *thing* assembly—public, plural, and durable in its outputs—is Arendt's *action* realised in a standing legal institution, with the lawspeaker performing concept-legislation in the very act of reciting and reconciling the law; and the Swedish principle of *offentlighet*, instituted by the Freedom of the Press Act of 1766, builds the standing infrastructure of accountable concept-legislation by guaranteeing that the materials of decision remain open to scrutiny. Against these the chapter sets the fork in the European tradition—common law, where the legislation is visible but taken on the wing under the pressure of particular facts, and codified civil law, deliberate but habitually presenting its decisions as mere statement—and the *lex mercatoria*, the merchant law that was concept-legislation conducted by the community of practice itself, candid about its own character and portable across jurisdictions, whose absorption into the territorial codes is a structure the AI case is already rehearsing.

Turned on the concepts AI places under most immediate pressure, the standard exposes a gap the inherited categories cannot close. The most pressing concept is not *understanding* or *feeling*, whose legislation is philosophically urgent but practically deferrable, but something more immediate: what category fits an LLM output that is false and does harm? The human taxonomy of false assertion—*lying*, *mistake*, *opinion*—sorts confident falsehoods by their intentional structure, and every one of its categories presupposes the intentional-embedded cluster the system does not possess. What the system produces is better named a *distributional assertion*: an output bearing all the behavioural marks of testimony and none of the intentional ones that would settle what kind of testimony it is, and giving no sign of their absence. The chapter works two cases through in detail—the legislation of *understanding* in medical-AI liability, and the legislation of *knowledge* under the pressure of hallucination—and maps the choices already being made across jurisdictions: the EU's AI Act, GDPR, and revised Product Liability Directive, each making morphism choices without naming them as such;

the Nordic administrative context, richer than most in the conditions for good legislation; and the fragmented US approach, deciding the same questions case by case without coordination or a shared account of what is at stake.

The chapter closes on the turn that makes it more than a survey. The institutions now charged with this work are not equal to it, and the inadequacy is not a contingent shortfall to be remedied by better draftsmanship or more expert committees. It is itself a symptom of the worldlessness Chapter Two diagnosed: across the history of European law, concept-legislation conducted through plural public assemblies has been progressively displaced by concept-legislation conducted through specialised expertise—the same movement, at the level of legal institution, that the book traces at the level of culture and economy. The instrument and the disease share an origin. What is assembled in the meantime, in product design and procurement contracts and the discretion of administrative bodies, is a *de facto* anthropology of the AI-adjacent human—an implicit theory of which concepts apply to systems like this, built without acknowledgment that it is being built. The predicament, in other words, reaches into the means of its own resolution.

Chapter Five: The Seventh Wave

The preceding four chapters are, in aggregate, a diagnosis. The fifth does not attempt to dissolve the predicament they describe. It attempts the more limited but necessary task of distinguishing an *adequate* response from a *successful* one, and of arguing that adequate response—in the precise sense the preceding argument makes available—is both available and worth the name.

The distinction carries the chapter. A *successful* response would reverse the erosion: rebuild the world of durable artifacts, restore the conditions for genuine public deliberation, halt the substitution of the consumption cycle for the political activity through which shared concepts are maintained and revised. Chapter Three established that no such response has been found and that the absorption thesis is more robust than any mounted against it, and this chapter does not contest that finding. It asks instead what an adequate response can be within the constraint. The Roman jurists and the thing assembly are its models, because both were adequate without being successful. The *persona ficta* did not prevent its own absorption into Justinian's fiction of discovery—but it remained available to be argued with, and two millennia later still grounds corporate personality in every major legal system. The thing assembly was displaced by the professionalisation of law—but its trace persists, in the Nordic consultative habit, in the ECHR's deference to the deliberative forms of member states, and not least in the fact that the inadequacy of present AI legislation can be named with the precision the preceding chapters supply, which itself presupposes a standard for

better legislation. The adequate act does not prevent absorption; it leaves something behind that the absorbed version, by the very act of absorbing it, cannot wholly consume. What distinguishes the seventh wave from the six before it is the availability of that trace: it knows the pattern of its predecessors, and though the knowledge does not dissolve the condition, it changes the character of what one does inside it.

The chapter gives natality, named in Chapter Two as the structural outside of the loop, its concrete form. Beginning is initiation whose content does not derive from what already circulates, performed by an agent who owns the act, in a space where the act can be taken up and answered by others. Two errors are ruled out. The error of *too much*: a confabulating model is unpredictable but does not begin, because it has no stake in the difference between what it generates and what is the case. The error of *too little*: the individual will is not a reliable source of natality, which is a structural feature of the public realm rather than an act of private wilfulness. The application to AI is not rejection. The same system is a *convivial* tool when it extends the competence of an agent committed to a durable outcome they answer for, and the terminal *industrial* tool when it delivers the satisfaction of having made without the making. Using AI to produce a durable argument one stakes one's name on is beginning in the relevant sense; using it to avoid the commitment that makes an artifact world-constituting is the *animal laborans's* activity in its most efficient form. The danger named in Chapter Three takes its sharpest practical shape here: the consumer interface is engineered to feel like convivial use—to produce the sensation of beginning while structurally ensuring continuation.

The chapter's central constructive move is to name a third form of response whose absorption profile differs from the two Chapter Three found foreclosed. The secular responses were absorbed because judgment is convertible into preference, and preference is what the consumption cycle runs on; the religious responses resisted absorption but at the cost of foreclosing natality. The third form is the *avowed commitment*: the explicit, named, publicly accountable commitment to a conceptual choice or a standard, undertaken with full acknowledgment that it is a commitment and not a discovery. It is what the Roman jurists practised in naming the *persona ficta* as fiction, and what the Upplandslagen's prologue practised in describing its own making as a choice among competing customs. Its resistance to absorption is not strong: it does not prevent the condition from metabolising the response. It changes the character of the metabolism, leaving a residue—a *fossil*—where simple digestion would leave none, and the seventh wave has six such fossils to draw on. This is determinate negation in Hegel's sense, transposed from the development of consciousness to the development of practice: the adequate act fails not formlessly but in a specific, informative way,

and the precision with which the commitment was made determines how useful its record will be to those who come after.

What the named choice requires is then specified at the scales on which it is available. At the scale of the individual—the hospital administrator deciding whether an AI system may be named the author of a clinical report—it is the conversion of covert morphism choices into avowed ones, which costs almost nothing and changes the accountability of the outcome. At the scale of institutional design it is the extension of something like the *offentlighet* principle to the materials of AI concept-legislation. At the scale of scholarship it is the production of durable arguments that stake something on being right and are addressed to a reader not yet encountered. At the scale of law it is the naming, as choices, of the morphism choices the AI Act has already made silently. The chapter then turns this standard on the book itself: it is built to last, addressed to a reader it cannot foresee, willing to name its conceptual choices as choices and to state the conditions under which it would be wrong—one instance of the practice it describes, not the practice itself, and far too small to be, by itself, an adequate response to AI.

It ends by locating the task precisely. The predicament has two layers. The first—the quiet accumulation of covert concept-legislation in product design, regulatory guidance, judicial rulings, and contract terms—has a response that can be begun now, by anyone who makes, uses, judges, or governs these systems: name the choices, at whatever scale one works, in whatever forum is to hand. The second is harder, because the institutions that would conduct explicit concept-legislation are themselves products of the erosion that produced AI, and no individual practice rebuilds the public realm. But the forms still standing—the Nordic consultative tradition, public-service media, scholarship not yet converted into content—can be kept, extended, and defended, avowedly, not out of nostalgia but because they are what the first six waves left standing, and what is here is where a response begins. The claim is small, and the chapter states it as one: it halts no erosion and produces no institution, but it identifies the practice available under present conditions and argues that the practice is worth taking up—not because it will succeed, which cannot be promised, but because it answers to what the situation requires and leaves the most useful thing that can be handed to those who come after.

Where the Arguments Meet

The five chapters appear to run on different planes—one conceptual, one economic and cultural, one historical, one legal, one practical—but they converge, and the convergence is this book's thesis. Chapter One ends by showing that the question “does the machine understand?” cannot be settled by discovery: in

the hard case, applying the concept is an act of legislation, which is to say a plural, public commitment—in Arendt’s vocabulary, an exercise of action. Chapter Two ends by showing that the systems posing this question are embedded in, and complete, the cultural form that most systematically erodes the capacity for action. Chapter Three ends by showing that this erosion is not recent: the same condition has been generating the same recognition, and absorbing the same resistance, for two centuries. The movements that tried to recover the world of durable things were right about the diagnosis and insufficient to the remedy—not because they lacked will or intelligence, but because the condition they were opposing had already shaped the materials available to them as a response—and it names the specific danger AI represents within this history: not the further destruction of the *homo faber*’s world but the simulation of its reconstruction, the system that presents itself as making in the relevant sense while producing nothing that accumulates toward a world. Chapter Four ends by showing that the institutions which would be needed to conduct the required legislation well have undergone the very erosion the legislation would have to address: the practice of avowed, plural, public concept-legislation, of which legal history holds a long record, has been displaced by the same specialised process that the *animal laborans*’ triumph has produced everywhere else, so that the predicament reaches into the means of its own resolution. And Chapter Five ends by refusing to let that be the last word. Distinguishing the *adequate* response from the *successful* one, it locates a practice that remains available even where success cannot be promised—the avowed commitment, which leaves a record the condition cannot wholly consume, and which is what action looks like for a wave that knows the pattern of the six before it.

The predicament, stated once: AI confronts us with a question of a kind that only action can answer, from within a condition whose capacity for action it is itself consuming—a condition that has been demonstrating that capacity for longer than the AI moment alone would suggest, and that has worn down even the institutions through which the answer would have to be given. What follows from this is not despair but location. The task is not to dissolve the predicament, which no argument can do, but to act inside it with the tools it provides: naming the choices as choices, making the commitment outlast the occasion of its making, and leaving a record legible to those who come after. No single chapter states this; together they constitute it, and the book is offered as one instance of the practice it describes.